

Multiple Choice (10 marks)

1. Which of the following best describes Dworkin's distinction between principles and policies?
 - (a) Principles are legislative, policies are precedents.
 - (b) Principles describe rights, policies describe duties.
 - (c) Principles are democratic, policies are autocratic.
 - (d) Principles describe rights, policies describe goals.
2. What is 'unilateral acts'?
 - (a) They are acts that States perform as practice in the context of custom
 - (b) They are acts creating unilateral legal obligations to the acting State
 - (c) Unilateral acts are simply political acts of State devoid of any legal effect
 - (d) Unilateral acts are those that State perform in order to be bound by a treaty
3. Functions of the law include all but which of the following?
 - (a) maximizing individual freedom
 - (b) providing a basis for compromise
 - (c) keeping the peace
 - (d) promoting the principles of the free enterprise system
4. Is piracy under international (jure gentium) law subject to universal jurisdiction?
 - (a) Piracy jure gentium is subject to flag State jurisdiction
 - (b) Piracy jure gentium is subject to universal jurisdiction
 - (c) Piracy jure gentium is subject to port State jurisdiction
 - (d) Piracy jure gentium is subject to nationality-based jurisdiction
5. Which are the formal sources of international law?
 - (a) Custom, treaties and judicial decisions
 - (b) Custom, general principles of law and theory
 - (c) Treaties, custom and general principles of law
 - (d) Treaties, custom and General Assembly Resolutions

True / False (10 marks)

Answer True or False

6. True or False: The Historical School of jurisprudence claims that law is primarily a reflection of societal norms and traditions.
7. True or False: The prohibition of genocide was the first rule of jus cogens explicitly accepted by the International Court of Justice.
8. True or False: There is no significant relationship between law and morality in non-positivist legal theory.
9. True or False: Kelsen's pure theory defines law primarily in relation to moral and ethical considerations rather than jurisprudence alone.
10. True or False: The Historical School of jurisprudence asserts that law evolves from social traditions and customs over time.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the role of consent in constitutional law, specifically examining how it can preclude the wrongfulness of state conduct, including the requirements for valid consent.
12. Discuss the Marxist critique of individual rights in the context of law, analyzing how these rights are perceived as products of capitalism and their relevance in a socialist society.

End of Paper